

settling meritorious claims.” (*Turner v. Cal.* (1991) 232 Cal. App. 3d 883, 888.) Courts generally apply a test of substantial compliance to determine whether there is sufficient information disclosed on the face of the tort claim to reasonably enable the public entity to make an adequate investigation of the merits of the claim and to settle it without the expense of a lawsuit. (*City of San Jose v. Superior Court* (1974) 12 Cal. 3d 447, 456.) “Consequently, a claim need not contain the detail and specificity required of a pleading, but need only fairly describe what the entity is alleged to have done.” (*Stockett v. Association of Cal. Water Agencies Joint Powers Ins. Authority* (2004) 34 Cal. 4th 441, 446.) The claim need not state each particular act which is later proven to have caused the injury. (Id at 447.)

On May 16, 2023, Plaintiff submitted a claim to the District pursuant to the Claims Act. The Claim refers to the December 16, 2022 Basketball Incident and the January 20, 2023 Collision Incident. (Decl. of Briggs, Ex. G.) It does not reference any name calling. Neither does the Second Amended Complaint, which only refers to “ongoing bullying”. (SAC, ¶ 23.) The description of the two incidents is sufficient to apprise the District that Plaintiff’s claims against it involve bullying by another student. Therefore, the Claim substantially complies with the Claims Act requirements. In its Memorandum of Points and Authorities, the District refers to testimony regarding name calling occurring for a couple of days before the Basketball Incident. However, since these allegations do not appear in the SAC, adjudication of the issue would not completely dispose of the negligence cause of action.

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CASE #	CASE NAME	HEARING NAME
CVRI2502515	SOLIS vs KENNON	MOTION TO STRIKE ANSWER ON COMPLAINT

Tentative Ruling: Plaintiff’s UNOPPOSED Motion to Strike Defendants HAYLEY A. KENNON, PENELOPE A. DELEON, and LUIS ENRIQUE DELEON’s Answer is granted, with leave to amend within 30 days.

Where verification of a pleading is required, and it is either not verified or improperly verified, it is subject to a motion to strike. *Perlman v. Municipal Court*, 99 Cal. App. 3d 568, 160 Cal. Rptr. 567 (2d Dist. 1979). Verification is not a jurisdictional requirement. *People v. Birch Securities Co.*, 86 Cal. App. 2d 703, 196 P.2d 143 (3d Dist. 1948)] Therefore, practitioners must object to a lack of verification or a defective verification or risk waiving the defect as they proceed to trial. *Ware v. Stafford*, 206 Cal. App. 2d 232, 24 Cal. Rptr. 153 (2d Dist. 1962)] The failure to verify a pleading, even where the verification is required by statute, is looked on as a mere defect curable by amendment. *United Farm Workers of America v. Agricultural Labor Relations Bd.*, 37 Cal. 3d 912, 210 Cal. Rptr. 453, 694 P.2d 138, 117 Lab. Cas. (CCH) P 56496 (1985).